

OFFER TO PURCHASE

Existing / resale property OTP

Buyer Information

Full name	Resale Buyer
ID / registration number	8001015009087
Email	buyer.resale@example.com
Telephone	+27 82 000 2701
Capacity	Purchaser in personal capacity

Seller Information

Full name	Resale Seller
ID / registration number	7501015009088
Email	seller.resale@example.com
Telephone	+27 82 000 2702
Capacity	Registered owner / seller

Property Information

Property	27 Proof Avenue, Sandton
Title / unit details	Freehold residential property
Purchase price	R 2 850 000
Deposit	R 142 500 payable to trust
Finance type	Bond finance
Offer expiry	17:00 on the fifth business day after signature

Commercial Terms

Commission Variation

Mandate commission	5%
OTP commission proposal	4.5%
Variation status	approved
Approval reference	OTP-P27-COMM-APPROVED

Buyer Cost Obligations

Known, estimated and pending buyer costs are shown before signature. Pending or estimated items stay visible until the appointed professional or authority confirms the final amount.

Cost	Status	Amount	Responsibility / timing
Body corporate levy estimate	Estimated	R 2 400	Seller until transfer; buyer after occupation/transfer; Apportioned on occupation or transfer
Municipal rates and taxes	Estimated	R 1 950	Seller until transfer; buyer after occupation/transfer; Apportioned on occupation or transfer

P1 initials

SEL initials

Cost	Status	Amount	Responsibility / timing
Buyer transfer-cost quote or invoice	Pending	Pending	Buyer; On conveyancer demand
Transfer duty or VAT treatment	Pending	Pending	Buyer; Before lodgement

Matter attorney cost quote status: uploaded

Transfer attorney: Phase 27 Transfer Attorneys

Legal Clauses

Section 3. Definitions

DEFINITIONS

In this Offer to Purchase, the defined terms include Agreement, Agent, Conveyancer, Deposit, Guarantees, Occupation Date, Purchase Price, Property, Purchaser, Seller, Suspensive Conditions, VAT and Compliance Certificates. Route-specific definitions are included only in the applicable resale or new-development section.

Section 4. Parties

PARTIES

Purchaser: Resale Buyer
Purchaser ID / Registration: 8001015009087
Purchaser Email: buyer.resale@example.com
Purchaser Telephone: +27 82 000 2701

Seller: Resale Seller
Seller ID / Registration: 7501015009088
Seller Email: seller.resale@example.com
Seller Telephone: +27 82 000 2702

Agency: Arch9 Realty
Agent: Alex Agent
Agent FFC Number: FFC-PHASE27

Section 5. Property

PROPERTY

Property Address: 27 Proof Avenue, Sandton
Title Type: Freehold residential property

The Property described above is the existing immovable property forming the subject of this offer, together with those fixtures and fittings expressly included in this Agreement.

Section 6. Purchase Price and Deposit

PURCHASE PRICE AND DEPOSIT

Purchase Price: R 2 850 000
Purchase Price in Words: Two million eight hundred and fifty thousand rand
Deposit: R 142 500 payable to trust
Deposit Due Date: Within 3 business days after acceptance
Trust Account Recipient: Phase 27 Transfer Attorneys trust account

The purchase price and deposit are those recorded above. Any deposit must be paid only to the approved trust account recipient recorded for this transaction.

Section 7. Finance and Suspensive Conditions

FINANCE AND SUSPENSIVE CONDITIONS

Finance Type: Bond finance
Bond Amount: R 2 280 000
Bond Approval Deadline: 21 days after acceptance
Cash Contribution: R 570 000
Cash Proof Deadline: 7 days after acceptance
Guarantee Delivery Deadline: 14 days after bond approval
Guarantee Delivery Period: 14 days
Irrevocable Offer Expiry: 17:00 on the fifth business day after signature
Structured Conditions: Subject to bond approval and standard transfer requirements

The finance route and suspensive conditions recorded above govern whether the offer remains subject to fulfilment, waiver or lapse. Structured conditions must be rendered from the approved condition records, not from free-text buyer onboarding notes.

P1 initials

SEL initials

Section 8. Subject-to-Sale Condition

SUBJECT-TO-SALE CONDITION

Purchaser Property: To be completed
Minimum Sale Price: To be completed
Fulfilment Date: To be completed

This condition applies only where the purchaser property sale condition is captured and approved for this resale OTP route.

Section 9. Occupation and Occupational Rent

OCCUPATION AND OCCUPATIONAL RENT

Occupation Date: To be completed
Occupational Rent Payable: To be completed
Occupational Rent Amount: To be completed

Occupation, risk, utilities and occupational rent must follow the route captured for the resale transaction and any special conditions approved for the offer.

Section 10. Disclosure, Fixtures and Compliance

DISCLOSURE, FIXTURES AND COMPLIANCE

Mandatory Disclosure Status: To be completed
Disclosure Annexure: To be completed
Disclosure Comments: To be completed
Fixtures Included: To be completed
Fixtures Excluded: To be completed
Compliance Certificate Schedule: To be completed

The seller disclosure, defects, fixtures, fittings and compliance certificate schedule must be sourced from seller/property records and attached annexures, not from buyer onboarding.

Section 11. Transfer and Conveyancer

TRANSFER AND CONVEYANCER

Transfer Attorney / Conveyancer: Phase 27 Transfer Attorneys
Transfer Contact Person: To be completed
Transfer Contact Email: To be completed
Transfer Contact Telephone: To be completed
Trust Account Recipient: Phase 27 Transfer Attorneys trust account
Guarantee Delivery Deadline: 14 days after bond approval
Guarantee Delivery Period: 14 days
Matter Attorney Cost Quote Status: uploaded

Transfer administration, guarantee delivery and deposit/trust-account handling must follow the appointed transfer attorney or conveyancer assignment.

Section 12. Buyer Cost Obligations

BUYER COST OBLIGATIONS

Buyer Cost Obligations: Buyer transfer-cost quote or invoice - pending; Transfer duty or VAT treatment - pending; Municipal rates and taxes - estimated - R 1 950; Body corporate levy estimate - estimated - R 2 400
Pending Cost Obligations: Buyer transfer-cost quote or invoice - pending; Transfer duty or VAT treatment - pending
Matter Attorney Cost Quote Status: uploaded

The Purchaser is responsible for the buyer cost obligations recorded in the structured schedule for this transaction, including any transfer costs, transfer duty, tax-related charges, rates or levy apportionments, scheme or community charges, and other route-specific charges marked as payable by the Purchaser.

Each obligation must render as known, estimated, pending or not applicable. An estimated or pending amount is not omitted merely because the final amount is unavailable at signature. It remains payable once confirmed by the appointed conveyancer, municipality, scheme managing body, homeowners association, developer, utility provider, SARS or other competent authority for the route.

Transaction attorney cost quotes or statements are matter-level records supplied through Phase 27 Transfer Attorneys and must remain separate from public attorney-lead quote workflows. A final statement or revised quote supersedes an earlier estimate only to the extent that the later statement identifies the updated charge.

P1 initials

SEL initials

Section 13. Agency Commission

AGENCY COMMISSION

Agency: Arch9 Realty
Agent: Alex Agent
Agent FFC Number: FFC-PHASE27
Gross Commission Amount: 128250
Mandate Commission Snapshot: 5%
OTP Commission Proposal: 4.5%
OTP Commission Variation Status: approved
OTP Commission Approval Reference: OTP-P27-COMM-APPROVED

The original mandate commission must remain a preserved snapshot. Any negotiated OTP commission proposal must carry approval status and an approval reference before it can be used to lock transaction commission allocations.

Section 14. Special Conditions and Annexures

SPECIAL CONDITIONS AND ANNEXURES

Special Conditions: To be completed
Annexures: To be completed

Section 15. POPIA and FICA

POPIA AND FICA

The Purchaser consents to the lawful processing and sharing of personal information reasonably required for offer administration, FICA, transfer, finance, compliance, signing and transaction records.

Purchaser: Resale Buyer

Section 16. Offer validity and acceptance

This offer remains open for acceptance until the expiry date recorded in the property information. Acceptance must be communicated in writing and signed by the authorised party before expiry.

Section 17. Occupation and possession

Occupation, possession and any occupational consideration are governed by the dates and amounts recorded in the structured terms. Risk and benefit do not pass merely because occupation is granted unless this agreement expressly says so.

Section 18. Risk and benefit

Risk in the property remains with the seller until the transfer date unless a route-specific clause provides otherwise. Each party must preserve the property and transaction records required for transfer.

Section 19. Compliance certificates

The seller must provide the compliance certificates required by law, municipal authority, body corporate rules or this agreement. The purchaser may not be required to accept transfer without the certificates required for the applicable route.

Section 20. Disclosure and warranties

The seller must disclose known defects and provide the mandatory disclosure record where applicable. The purchaser acknowledges receipt of the disclosure information recorded for the property before signature.

Section 21. Fixtures and exclusions

Fixtures, fittings, appliances and exclusions are only included if recorded in the structured property terms or annexures. No verbal assurance varies the written included or excluded item schedule.

Section 22. Breach and remedies

If either party breaches this agreement and fails to remedy the breach after written notice, the aggrieved party may pursue the remedies available in law and under this agreement, including cancellation or specific performance where applicable.

Section 23. Notices and domicile

The parties choose the physical and electronic addresses recorded in the transaction records for notices. A notice sent to the recorded address is treated as validly delivered unless a party has given written notice of a changed address.

Section 24. POPIA and FICA

The parties consent to the processing of personal information required for FICA, transfer, bond, agency, conveyancing, compliance and signature purposes. Information may be shared only with transaction participants who require it for the matter.

Section 25. Annexures

All annexures referenced in this agreement form part of the agreement once identified and signed or initialled where required. If an annexure conflicts with a typed special condition, the stricter signed condition applies unless expressly varied.

Section 26. Signing counterparts

This agreement may be signed in counterparts and by electronic signature where the signing workflow records signer identity, role, date, document version and completion evidence.

P1 initials

SEL initials

Section 27. Initials on every page

Each required signatory must initial every page. Initials are evidence that the party has had sight of the page but do not replace the signature required on the signature page.

Section 28. Route-specific special conditions

Resale special conditions apply only to the existing property, seller disclosures, occupation, rates, levies, fixtures and transfer arrangements recorded for this route.

Section 29. Costs pending attorney quote

Where transfer costs, duty, rates clearance, levy clearance or attorney charges are pending, the purchaser remains responsible for the buyer cost obligations recorded as pending until the matter attorney quote or final statement replaces the estimate.

Section 30. Final statement handling

The matter attorney may issue a final statement once charges are known. Any previous quote or estimate is superseded only to the extent that the final statement identifies the updated charge.

Signatures, Dates And Initials

Initials are required on every page. Signature and date boxes are role scoped for this OTP route.

Initial markers every page: purchaser_1 initials; seller initials

Signer role	Signature	Witness 1	Witness 2	Date
Purchaser	Signature field	Witness 1	Witness 2	Date field
Seller	Signature field	Witness 1	Witness 2	Date field

Initials are shown in the footer on every page for each required role.

P1 initials

SEL initials